

David Hermelin's Motion to Be Relieved as Counsel for Defendant Aurin Canson will be **granted** as soon as counsel complies with California Rule of Court 3.1362(e) and lodges a proposed order with the Court.

19. 9:00 AM CASE NUMBER: N26-0541
CASE NAME: CARMEN SAMIERE VS. MATEO MAYNE
HEARING IN RE: PETITION TO CORRECT OR VACATE ARBITRATION AWARD
FILED BY: SAMIERE, CARMEN MARIE
TENTATIVE RULING:

Petitioner Carmen Samiere seeks to correct the arbitration award she received against Respondent Mateo Mayne. The Court previously approved alternate service on Mayne, and so it is perhaps no surprise that Mayne has not responded to the Petition.

Pursuant to Code of Civil Procedure Section 1286.6:

Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that:

- (a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award;
- (b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or
- (c) The award is imperfect in a matter of form, not affecting the merits of the controversy.

This Court must give every intendment of validity to arbitration award, and burden is on one claiming error to support his claim. (*Griffith Co. v. San Diego College for Women* (1955), 45 Cal. 2d 501, 516.) "The mere fact that an arbitrator used unsound reasoning in reaching a conclusion or reached an erroneous conclusion within the scope of arbitration will not invalidate the result." (*Durand v. Wilshire Ins. Co.* (1969) 270 Cal. App. 2d 58, 63.)

Here, Samiere argues that the arbitrator ignored certain of her evidence in denying some of her requested damages. She further argues that the arbitrator did not give any reasoning in denying her Request for Modification. Upon review of the Petition, Samiere is essentially asking for this Court to re-weigh evidence that was fully litigated before the arbitrator, including *with* the involvement of Mayne. The Court does not reach the "intrinsic validity" of the award, but looks only to "whether the arbitrator exceeded his or her powers." (*Rifkind & Sterling, Inc. v. Rifkind* (1994) 28 Cal. App. 4th 1282, 1290.) What Samiere is seeking would affect the merits, which is not permitted. (*See, e.g., E-Commerce Lighting, Inc. v. E-Commerce Trade LLC* (2022) 86 Cal. App. 5th 58.)

The Petition is therefore **denied**.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C25-01274

CASE NAME: MARK ZUCCA VS. NELLY PICKERT

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER ANSWERS TO FIRST FORM INTERROGATORIES PROPOUNDED BY DEFENDANT EDWARD S. WASNIOWSKI**

FILED BY: WASNIOWSKI, EDWARD S.

TENTATIVE RULING:

Defendant Edward Wasniowski has filed a Motion to Compel Plaintiff's Further Answers to First Form Interrogatories. Plaintiff Mark Zucca has filed no opposition.

The recent procedural history of this case bears some discussion. On May 28, 2026, the Court sustained a demurrer by Defendants SV Quick Capital Corporation and Eminent Capital Investments to Counts 1-9, 11, 12, and 22 of the Complaint, granting leave to amend. Plaintiff has not amended. On June 11, 2026, Paula Grohs was relieved as counsel for Plaintiff. No new attorney has filed an appearance on behalf of Plaintiff. The Court is therefore not certain if Plaintiff still intends to prosecute his case.

Defendant Wasniowski seeks further answers to five interrogatories. Wasniowski filed a Motion, a Memorandum of Points and Authorities, and a Declaration, which is not compliant with California Rule of Court 3.1345(a). Given the extraordinary circumstances at issue in this particular case, and in the interest of judicial economy, the Court will proceed on this Motion despite the failure to comply with Rules of Court. Counsel is admonished to file compliant documents in the future.

The requests Wasniowski has propounded are reasonable and Plaintiff's failure to respond fully is not justified. For those reasons, Defendant's Motion is **granted**.

Interrogatory 2.5

Plaintiff must provide his residence address.

Interrogatory 9.1

Plaintiff must list all damages currently known to him arising out of the incidents at issue in the complaint.

Interrogatory 12.2

Plaintiff must respond regarding any interviews relating to the incidents at issue in the complaint.

Interrogatory 12.3

Plaintiff must provide any written or recorded statements relating to the incidents at issue in the complaint.